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- * **IN THE HIGH COURT OF DELHI AT NEW DELHI**
+ BAIL APPLN. 649/2021
KAILASH CHAND DWIVEDI Petitioner
Through: Mr. RK Tarun, Adv.
versus
STATE Respondent
Through: Mr. Vikas Chopra, Adv. for R-2
Mr. Ajay Vikram Singh, Ld. APP
SI Yogesh Sharma, PS Model Town
- 37
+ BAIL APPLN. 650/2021
SHYAM HARI DWIVEDI Petitioner
Through: Mr. RK Tarun, Adv.
versus
STATE Respondent
Through: Mr. Vikas Chopra, Adv. for R-2
Mr. Ajay Vikram Singh, Ld. APP
SI Yogesh Sharma, PS Model Town
- 38
+ BAIL APPLN. 737/2021
GAUR HARI DWIVEDI Petitioner
Through: Mr. RK Tarun, Adv.
versus
THE STATE (NCT OF DELHI) Respondent
Through: Mr. Vikas Chopra, Adv. for R-2
Mr. Ajay Vikram Singh, Ld. APP
SI Yogesh Sharma, PS Model Town
- 39
+ BAIL APPLN. 739/2021
BRIJ DWIVEDI Petitioner
Through: Mr. RK Tarun, Adv.
versus
THE STATE (NCT OF DELHI) Respondent
Through: Mr. Vikas Chopra, Adv. for R-2
Mr. Ajay Vikram Singh, Ld. APP
SI Yogesh Sharma, PS Model Town



CORAM:
HON'BLE MR. JUSTICE JASMEET SINGH

ORDER

01.08.2022

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These are the anticipatory bail applications in the FIR No. 708/2020 dated 14.12.2020 registered at PS Model Town, Delhi under Section 420/406/34 IPC.

The complainant has filed the application against the accused persons who are real brothers on the allegations of cheating, fraud and breach of trust. The applicants represented themselves as owners of the property bearing No. 1/6 Roop Nagar, Delhi ad measuring 287.78 sq. yds.

As per the FIR, on 11.06.2012, a collaboration agreement was entered into between Mr. Vaibhav Sharma and the applicants herein for construction of property bearing No. 1/6 Roop Nagar, Delhi ad measuring 287.78 sq. yds.

As per the collaboration agreement, Mr. Vaibhav Sharma was to pay Rs. 3.51 crores to the applicants and get the sale deed of the First and Second Floor of the property in his favour.

It is submitted that since Mr. Vaibhav Sharma was unable to proceed with the construction, a Tripartite MoU was entered into between the applicants with Mr. Vaibhav Sharma and the complainant i.e. Mr. Rajan Chopra dated 01.09.2017, wherein Mr. Rajan Chopra took the responsibility to construct the building by stepping into shoes of Mr. Vaibhav Sharma.

It is further stated that there was delay in construction and since the applicants were in financial emergency, they sold off the Second Floor to some other person, which has led to filing of the FIR.

It is stated that the petitioners have already re-paid Rs. 1.5 crores to the complainant which is disputed by the learned counsel for the respondent



No.2.

Be that as it may, the parties have now arrived at a settlement dated 16.07.2022, pursuant to which the applicants have made a payment of Rs. 22.5 lakhs to the respondent No.2, and have to pay Rs. 1,22,50,000/- to the respondent No.2 at the time of quashing of the FIR which is on or before 31.10.2022. Mr. Vikas Chopra, learned counsel appearing for the respondent No.2 affirms the same.

In this view of the matter, since the parties have already arrived at an MoU, and the applicants and the respondent No.2 will be taking steps for quashing of the FIR, I am of the view that the applicants need to be granted anticipatory bail. It is, therefore, directed that in case of arrest in the FIR No. 708/2020 dated 14.12.2020 registered at PS Model Town, Delhi under Section 420/406/34 IPC, the applicants shall be released on the following terms and conditions:-

- i. The applicants shall furnish a personal bond in the sum of Rs. 10,000/- with one surety each of the like amount to the satisfaction of the I.O.;
- ii. They shall appear before the Court as and when the matter is taken up for hearing;
- iii. The applicants shall participate in the investigation and will join the investigation as and when directed by the I.O.;
- iv. In case they change their addresses, they will inform the IO concerned and this Court also;
- v. The applicants shall not leave the country during the bail period and surrender their passports, if any, to the I.O.;
- vi. The applicants shall not indulge in any criminal activity during the



bail period;

The parties are bound by their obligations in terms of the MoU dated 01.09.2017 arrived at before the Mediation Centre and if the applicants do not perform their obligations as per the MoU, the other party is at liberty to move to the Court for action in accordance with law.

With these observations, the applications are allowed.

JASMEET SINGH, J

AUGUST 1, 2022 / (MS)

Click here to check corrigendum, if any